8/2/23 - National Grid, NY - 23-G-0225/23-G-0226

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

CASE 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

PUBLIC STATEMENT HEARING

DATE: August 2, 2023 at 6:02 p.m.

VENUE: WebEx

BEFORE: A.L.J. MAUREEN LEARY

A.L.J. JAMES COSTELLO

Reported by Anthony McClain

8/2/23 - National Grid, NY - 23-G-0225/23-G-0226

(The hearing commenced at 6:02 p.m.)

THE REPORTER: Yes, Your Honor. We are on the record.

A.L.J. LEARY: Thank you. I call Case 23-G-0225, Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of the Brooklyn Union Gas Company, doing business as National Grid, New York, for Gas Service and case 23-G-0226 Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation doing business as National Grid for Gas Service. Good evening, everyone. Welcome. We are here this evening for a public statement hearing that was the subject of a June 30th, 2023, notice issued by the Secretary to the Public Service Commission.

My name is Maureen Leary. I am an Administrative Law Judge with the Office of Hearings in the Department of Public Service. With me this evening is Administrative Law Judge James Costello. Together, we are responsible for presiding over this and other hearings in these cases and for the development of a complete record of the proceedings. I'm also honored to indicate to you that our Chair of

the Commission, Roy Christian, and one of our Commissioners, Commissioner John Maggiore, are with us this evening. Welcome Commissioners and can I turn the floor over to Chair Christian to address our participants.

CHAIR CHRISTIAN: Thank you, Judge Leary. Good afternoon, everyone. I want to thank you all for taking time out of your busy schedules to be here today. This is the fourth hearing regarding the KEDNY and KEDLI rate cases. And I want to thank you all for your participation. I know this topic is of great interest and importance and appreciate your involvement. Now the topics we're going to discuss tonight are part of the public record. They go into the Commission's decision-making process. And we want to make sure we have the opportunity to hear everyone and hear your positions and take them into consideration before taking any actions on these cases. So want to, again, thank you for your time and I'm looking forward to a healthy discussion this evening. Judge Leary?

A.L.J. LEARY: Thank you, Chair Christian and Commissioner Maggiore.

MR. MAGGIORE: Thank you. I would

just echo what the Chair has -- had to say right there, and I would just add that I appreciate everyone who's taken time out to participate in this process. As a -- as an individual Commissioner, I find that a public component to be very helpful in -- in my ability to assess the impact of what items that come before us have on real people, as well as I learn a lot from forums such as this. So thank you very much. Other than that, I'm here to listen to you. You're not here to listen to me, so you're not going to hear from me again to -- tonight, but I'm paying very close attention to what you have to say, so thank you very much.

A.L.J. LEARY: Thank you, Commissioner Maggiore. The Brooklyn Union Gas Company, doing business as National Grid, New York, that I will call KEDNY, and KeySpan Gas East Corporation, doing business as National Grid that I will refer to as KEDLI, Long Island or collectively, the Companies, have filed amendments to their gas tariff schedules. That happened on April 28th, 2023 and they proposed to increase their annual gas delivery revenues effective March 31st, 2024. For KEDNY, the proposal is to increase its revenues by four hundred and

fourteen million dollars, a twenty-eight percent increase in base delivery revenues, or a seventeen percent increase in total revenues. KEDLI proposes to increase its revenues by two hundred and twenty-eight million dollars, representing a twenty-four percent increase in base delivery revenues, or a fourteen percent increase in total revenues.

Although the actual bill impacts of these proposed changes on any particular customer may vary upon revenue allocation and rate design as determined by the Commission, the Company states that the typical KEDNY residential heating customer will have approximately a thirty-dollars and ninety-five cent average monthly bill increase.

A typical KEDLI customer that is a residential heating customer will have approximately a twenty-eight dollar and fifty-two cents average monthly bill increase.

Now, under New York law, known as the Public Service Law, the Public Service Commission must consider a utilities' proposal and may adopt or reject it in whole or in part, or may modify it. Often cases are settled among various parties. The statutory timeframe for consideration of a rate case

is generally about eleven months under the Public Service Law. So let me talk about the Commission a little bit. You've met our Commission chair and one of our Commissioners, thank you both for coming. There are other Commissioners six o -- I'm sorry, five others, and they are Diane Berman, James Alesi, Tracey Edwards, John Howard, and David Valesky.

So I will explain the process that we're going to follow this evening. And remember, as as Chair Christian and Commissioner Maggiore stated, the purpose of this hearing is to provide you with an opportunity to tell the Commission your thoughts on the Companies' rate proposals. It is to listen to you. The statements you make today will become a part of the case record. And as you may have noticed, we have a court reporter who will -- who is transcribing the entire proceeding, including your comments, and he will prepare a transcript of this hearing.

That transcript will be included in the official record of this proceeding so that your comments can be -- can be considered by members of the Commission. When that transcript is ready, it will be available for review on the Department of

Public Service website. And I want to give you a couple of numbers that you now see on your screen that are very important and will enable you to search that website. Those numbers are 23-G-0225 and 23-G-0226.

You can access pretty much either KEDNY or KEDLI's filings under those two numbers depending on which Company you are interested in.

Generally speaking, the filings by the Companies are filed in both cases, so searching under one number should be sufficient. Also, importantly, this is not your only opportunity to comment. If you did not register to speak at today's hearing, but you'd like your views to be included in the record there are a variety of other ways to comment that were listed first in the Secretary’s June 30th public notice of these hearings. And you specifically can do so, as noted in the -- in that notice, submit your comments by email, regular mail, or by phone or on the Department's website.

Regardless of how the comments are submitted, they will be given equal consideration and they may be submitted and will be considered throughout the pendency of this proceeding. If you

have registered to make a statement, please summarize lengthy statements because we have somewhat limited time and your statements can be submitted orally, but you can submit the full written statement, that may be lengthier, by email or mail.

Also, I have noticed that our Notice of the public statement hearing sets an August 4th date for submitting comments. This date was chosen so that members of the Department staff as well as other parties and the Companies will have before them your comments in order for them to timely address them if appropriate in their testimony, which will be filed in September. Having said that deadline of August 4th, it's not a real written-in-stone deadline. Comments will be accepted throughout the pendency of this proceeding.

So because of the number of speakers we have had in the last couple of days, I'm going to ask the speakers to limit your comments to about three minutes in -- in terms of the timeframe. That way we can hear everybody without losing anyone to other obligations. Here's what I am going to do. First, I'm going to call the folks who are registered. They're either participating

electronically or they're participating by telephone. In either case, you should have only one audio input, one device. Otherwise, you're going to have some feedback and we may not be able to take your comment. If you are participating by phone, you'll hear me repeatedly ask you to press star three. That will allow us to recognize you as the next speaker and unmute your line so that you can deliver your statement.

For -- for the people registered electronically, we will identify you on our screens, unmute your line, you should hear a tone. And you'll also see that your microphone icon is no longer red and with a slash through it, you'll have a green microphone.

Please make sure that if you have muted your own computer, you may need to unmute that as well for us to hear you. So let me begin. Oh, one further instruction. Once your line is unmuted, please state your name and don't be quick about it. Please, if -- if you are not a registered speaker, you're going to need you to spell your name and I will allow registered speakers at the end, time permitting, to provide comments should they so

desire.

But please state your name, spell it if you're not registered, and then speak slowly and clearly so that the court reporter can accurately capture your statement for the record.

Okay. I will also advise once I call one speaker, I'm also going to do what I call telling the next speaker that they're on deck, which is a baseball term saying you're next. And I will also indicate to you that your line is unmuted and we can hear you, so you can go ahead with your statement. Okay. My first speaker is Maddie Aracich, Maddie Aracich.

MR. WHITE: I -- I don't see that person, but maybe they maybe they called in your Honor and would have to hit star three on their phone so we could see who they are.

A.L.J. LEARY: Okay. Let's -- let's see if Maddie Aracich is attending by phone, please press star three on your phone so we could recognize you. Doesn't look like it's anyone. Alright, let's move on. Oh, no. There he is. Matthew Aracich, registered as Maddie, but you see him, Mr. White. He is down at the bottom of the list of attendees. Oh,

he just disappeared.

MR. ARACICH: I'm here.

A.L.J. LEARY: Oh, there he is. Okay. Go ahead Mr. Aracich. We can hear you.

MR. ARACICH: Terrific. Thank you very much. My name is Matthew Aracich. Last name is A-R-A-C-I-C-H. I am the President of the Building and Construction Trades Council for Nassau and Suffolk Counties. The -- the council actually recommends that we approve this rate increase that we're talking about, and the reason is we want to make sure that we get off fossil fuels. And this is a way to make sure that we can begin to really make that transition. So that's why the -- the reference on case number 23-G-0225 is very important. One of the things we're noticing is that by the year 2025, there will be a replacement of the majority of 95 percent of the gas lines that are in the streets in Nassau and Suffolk counties, with high density polyethylene. The reason that's important is we're -- if we're looking to continue to use natural gas, both for efficiency and for emission purposes, it also gives us a transition to get into a hydrogen footprint.

Hydrogen is actually the case that they're actually using over at Lido Beach, and National Grid has made a -- a motion that they are making sure that they utilize this so they can address the emissions on 800 homes in the South Shore, and that's only the beginning. So with all this, we also need the -- the training involved for all the members of Local 1049 and then all of the ancillary work with energy infrastructure that is extremely important in moving to a zero-carbon footprint. So that's why the building trade is so supportive of this. Yes, we are members of the community. Yes, we realize that we are going to have rate increases for ourselves. However, we also realize that by investing in this, we are also investing in local economies because that economy is actually the county and the state. And by having local contractors there, it helps raise the funds to make sure all of this is paid for. Thank you very much. And if you want safe electric and is -- safe electric and safe gas, it's -- it's important that we support Long Island's Energy Group. So thank you.

A.L.J. LEARY: Thank you, Mr. Aracich. Okay. I violated my own instruction by not giving

you the on-deck person, I apologize. So ne -- our next speaker is Alba Meang, M-E-A-N-G, and on deck is Gigi Nieson. Alba Meang, if you are a call-in user by telephone, please press star three, so we can identify you. Not seeing anything. Okay. Gigi Nieson. Gigi Nieson. Again, press star three if you're a call-in user. Okay. Kier Blake. Kier Blake. Call-in user, no? Star three if you are a call-in user.

MR. WHITE: No raised hands, Your Honor.

A.L.J. LEARY: Okay. Miriam Bluestone. Miriam Bluestone. I don't see her either. Lynn Tondrick, Lynn Tondrick. Everyone, I will go back and repeat these names later in case you are actually on the line. Laurie Wheelock, I do see you, Ms. Wheelock, your line is unmuted. Go ahead.

MS. WHEELOCK: Good evening, Administrative Law Judges, Leary and Costello, Chair Christian and Commissioner Maggiori. My name is Laurie Wheelock, I'm the Executive Director and Counsel for the Public Utility Law Project. We go by PULP for short, and I go by the pronoun, she/hers. PULP is a 40-year-old nonprofit with the mission of

educating, advocating, and litigating on behalf of New York's low-income utility customers. PULP thanks the Department of Public Service for the opportunity to testify tonight in relation to KEDNY and KEDLI's gas rate cases. We are an active party in both cases and do plan to file expert testimony on September 1st. Tonight though, I want to address several concerns we have that will be expanded upon in our written testimony. Yesterday, my colleague Andrew Sevedra (phonetic spelling) testified in relation to some affordability concerns we have with the greater financial pressures that people are feeling at this time.

But tonight, I want to dive a little bit deeper as PULP believes that we need to really consider the cumulative effects and think creatively about how to keep costs as low as possible. First and foremost, we want to recommend that during the pendency of the rate case, that the monthly collection activity reports filed in 91-M-0744, be reviewed on a regular basis. This helps show how the customers' financial health is doing. And for instance, in June 2023, over 56,000 KEDLI accounts and over 197,000 KEDNY accounts were behind on their

bills by 60 days or more. We think it's an important backdrop as the Companies are now proposing this double digit rate increase. In truth cases like this are becoming very difficult for parties like PULP. As we understand the need and the balance for safe and reliable service at just and reasonable rates, we feel that the just and reasonable rates need to be strictly scrutinized more than ever.

The large rates being requested are simply unaffordable to many low fixed and even moderate-income households. And so we have to think creatively and really dig deep and reconsider every traditional aspect of a rate case. So some of the aspects we wanted to encourage were increased energy efficiency programming to help people lower their usage, as well as more direct outreach to customers explaining how they can take steps today to lower their usage. We also want to encourage more enrollment in the energy affordability program, which is a success for families and households who are enrolled in the monthly discount program. Also, considering whether or not we can freeze or even roll back fixed rates, which we see as regressive, in particular for low-income households. Another aspect

that we think is an opportunity for deep review is the return on equity. Finding a way to make sure that yes, while a reasonable rate of return is possible, that also that the ret -- return on equity is reviewed and kept as strict as possible so that it helps cut costs.

And just because one utility is approved at a 9.25 percent return on equity, doesn't mean that another utility should receive that same ROE. Also, work in inside the rate case to help keep the length of the rate cases themselves to the 11-month statutory period, while limiting the mid coal provision is something that's really important to PULP. And another aspect we wanted to flag is the site investigation and remediation cost, also known as SIRC. We need to reevaluate the way we handle environmental costs due to projects like the Newtown Creek and the Gowanus Superfund sites where escalating environmental costs are one of the many rate drivers that KEDNY has pointed to when it comes to the proposed revenue requirements.

So, PULP, again, thanks the commission and the department for having these hearings tonight. We look forward to submitting our testimony on

September 1st and working hard in this rate case so that low income, moderate fixed income households can pay their bills and keep their service on. Thank you.

A.L.J. LEARY: Thank you, Ms. Wheelock. Let me go back and see Mary Finneran, are you on the line? Now if you are calling in on someone else's computer, which happened this afternoon, there is a raised hand function at the lower part of your screen. So if that's the case, please just hit that raised hand function and that will appear, so the name that we're seeing on our screen we'll identify you as the person who's going to -- or a separate person who's next going to give a comment. So Fred Harrison. Mr. Harrison? Not seeing Mr. Harrison. Margot Spindelman? Also a registered user. Okay. Let me go back and see if anyone has -- who has registered has come into the meeting. Alba Meang? Gigi Nieson? Kier Blake?

MR. WHITE: We have a raised hand, Your Honor.

A.L.J. LEARY: Okay. That call-in user, would you unmute and let's see if we can identify who that is.

MR. WHITE: Sure. Go ahead.

A.L.J. LEARY: Go ahead. We can hear you or we did hear you for a moment.

MR. MAQUE: Okay. My name is Jack Maque. I had registered for the 1:00 p.m. session, but I listened, my name was not called, but I did get a call back from one of your staff people saying they tried to get me in. I didn't hear my name called today either. My name is Jack Maque. I live in Baldwin, and I would like to comment that according to published and public data, natural gas prices have fallen over the past year to one third of its cost. An online chart documenting its decline can be found at www.macrotrends.net. That's M-A-C-R-O-T-R-E-N-D-S dot net. With this fact taken into consideration, National Grid should be offering a decrease in charges, not seeking an increase. Please don't approve their request for an increase. Furthermore, the amount that was previously mentioned as an anticipated increase for the average Long Island customer of $28 and 52 cents per month, was actually listed in today's Newsday on page e -- eight, more likely to be $34.66 cents per month, which would mean an over $400 per customer annual increase. This is

too much. I'm in favor of keeping gas service on Long Island, but I'm not in favor of granting National Grid a luxurious price increase to provide that service. Please take a look at the numbers. Thank you.

A.L.J. LEARY: Thank you, Mr. Maque. And having been on the one o'clock call, I'm not sure what happened, but we appreciate your comment and your patience as well as your participation this evening. Okay, I have another call-in hand, or is that this -- oh, no. GiGi Nieson? Let me see if we can unmute your line. Yep, you are unmuted, go ahead. Actually, Mr. White, I'm not seeing a green microphone for some reason. Ms. Nieson, I think --

MS. NIESON: Hello?

A.L.J. LEARY: Yes. Now --.

MR. WHITE: She's unmuted, Your Honor.

A.L.J. LEARY: Okay -- okay --.

MS. NIESON: Yeah. Good evening. My name is GiGi Nieson. I live in Bed-Stuy, Brooklyn. I'm here at this hearing to, you know, reject National Grid's proposals to spend these billions of dollars to put in more fracked gas infrastructure, you know, millions more on reinforcements to fracked

gas infrastructure across Brooklyn and Queens. And say no to this rate hike to pay for all these projects. You know, when I think of the future and a future that I want for myself and my neighbors to live in, I think of one where we don't have to worry about pollution-related health hazards, where there's free clean energy, and most importantly, a livable planet. Last year, you know, my partner had a tumor the size of a golf ball. She's still paying back those medical bills to this day, for those repeated surgeries. With, you know, rising rent and costs, a rate hike will certainly be a problem for us in the future.

And, you know, we know the science behind how the proximity to fossil fuel infrastructure increases those health risks, asthma and cancer. And this is especially concerning to me. When we think of gas leaks and accidents, it's never if. It is when is it going to happen? And when the climate -- and with climate science being so clear that, you know, these wildfires and incredible storms that we're experiencing, these heat waves, you know, it's so clear and it's so evident that National Grid should be taking steps to reduce gas usage -- usage

and look for other solutions such as thermal energy. Now, I won't be gaslight into thinking these projects are beneficial for me or my neighbors. National Grid's not a positive force in the community, and they've already stolen so much and extracted so much from us. Thank you.

A.L.J. LEARY: Thank you, Ms. Nieson. Okay, let me just, again, address the call-in users because there are a couple of people here that are not -- either not present or not able to be identified. Alba Meang, Mary Finneran, Kier Blake, Mimi Bluestone, Lynn Tondrick, Margot Spi -- Spindelman. Anybody? Okay. Let me -- oh -- oh, let's see. Kier Blake, excellent. You are unmuted. Go ahead with your statement.

MS. BLAKE: Oh, hello.

A.L.J. LEARY: Hi. Go ahead. We can hear you.

MS. BLAKE: Perfect. So hello, my name is Kier Blake. I use they/them pronouns, and I'm the co-founder and the Director of community and school partnerships at Star Empowerment, which has reached over 3,500 students and over 405 -- 4,500 members to date and counting. We seek to educate

communities on environmental justice issues such as around the -- these pipelines and these reinforcements such as the one that National Grid is proposing. As a member of the community in the Flatbush neighborhood, National Grid's desire to spend $850,000 to reinforce the Flatbush gas gate station is pretty ludicrous. As a member that has already gone through kind of the trauma and also the confusion of seeing like the streets being dug up, and then not knowing that an active pipeline filled with fracked gas was being input in my neighborhood, was going in in the first place, with only just a couple years ago, and now then realizing that also there's further expansions going into Q Gardens, Belmont, Jamaica, and Corona, connecting customers for 467.5 million, is even more alarming.

It's very telling the fact that we have to essentially see the continued expansion as everyone has been mentioning, of these pipelines when we're trying to move towards a climate positive future, one in which we don't see the increased use of fossil fuels. Furthermore, I would also like to say we were a part of -- and I'm a current and proud member of the New North Brooklyn Pipeline Alliance,

that has stopped phases five and also the vaporizers, towards the end of the pipeline. And I will say from that experience, just learning how much, you know, our voices and -- and how much us speaking up really matters. And also just wanted to say that, you know, the turnaround period for this hearing was very -- very, like, rushed, it felt like. I didn't have enough time to alert my community members, and it kind of felt the same way that it felt all those years back when we didn't even know that there was a pipeline going in and yet didn't even have the time to organize or call for a public or in-person hearing.

And so I just wanted to just express a lot of deep disappointment in the fact that if this does go through, that there will be a lot of community harms that continue to happen, already in environmental justice areas, already in areas that are facing food insecurity, already in areas that, you know, were hit really hard with the air quality alerts, and everything with the wildfires in Canada.

And it still is going through with a lot of needs for mutual aid and things from the pandemic. So thank you for listening and I really

urge you to make the right choice in accordance with everyone here, in terms of saying no to these increases and these reinforcements. Thank you.

A.L.J. LEARY: Thank you, Ms. Nieson. Let's see. I can open up the floor at this point. If I have already called your name and you have not yet given your statement, please raise your hand. If I have already called your name. Okay.

MR. WHITE: Kim Fraczek has her hand up, Your Honor.

A.L.J. LEARY: She -- her name was not called, but I will go to that next. So let me open up the floor. Are there others on part in -- in our attendee group that wish to provide a statement? Ms. Fraczek, I see you and I see Ms. Leidecker, and Ms. Chamberlain, so if you want to provide a statement at this time, please raise your hand, I will call you. Ms. Fraczek, we're going to unmute your line and give you an opportunity to be heard. Okay. We did Erika Chamberlain instead, but --.

MS. CHAMBERLAIN: Yes, you unmuted Erika Chamberlain, that's me.

A.L.J. LEARY: Hold on a second. Let's take -- take one at a time. Can we go back to

Ms. Fraczek?

MS. FRACZEK: You can -- you can go to -- go -- go to Erika first, because --.

A.L.J. LEARY: No, you're unmuted. We're going with you first.

MS. FRACZEK: All right. Okay. Thank you so much. Thank you for hearing the public tonight. My name is Kim Fraczek and I'm the Director of Sane Energy Project in Brooklyn, New York. I'm an intervener in this proceeding and I will be spending every minute over the next month writing our expert testimony about why you should 100 percent reject any rate hike for National Grid's fossil fuel proposal. National Grid should not get one penny more from New Yorkers unless it is investing in thermal energy networks, heat pumps, and energy efficiency to lower our bills and our climate impact and train our unions to work in the 21st century, not the 19th century. Tonight, I'm not speaking as the Director of Sane Energy Project, but I'm going to speak as a resident who lives within the mile radius of a toxic and decaying liquified fracked gas facility, otherwise known as the Greenpoint Energy Center at 287 Maspeth Avenue, that they are asking for $447 million over

the next four years.

This facility must be retired with a clear milestone plan in this rate case, not spend any more money propping up some of the most toxic land in our entire nation. I've mentioned in several public hearings before that I grew up in Pennsylvania and the water reservoir I grew up on is poisoned because of fracking infrastructure. And I know people that can't bathe their children and drink the water that comes out of their tap because of the industry that we are here opposing tonight in the forum called National Grid. You have a moral responsibility to us. I appeal to the Department of Public Service and the Public Service Commission to do the difficult job in this rate case of being conscientious objectors.

In the past, where we can con -- in the past the time where we can continue to say that extending and expanding a fossil fuel system is help -- is helping curb greenhouse gas emissions, because these giant corporations have the resources to strike the public in multiple ways through disinformation, confusion, bribery, and debt. We just lost billions of dollars because you approved the 2022 Con Ed rate case, and we did lose billions of dollars in the 2019

rate case, and we would have lost more if it wasn't for small organizations like Sane Energy Project doing our best to participate in this process without having armies of staff and lawyers, and insisting that we have an independent consultant cross-checking what the corporate utility is telling you.

And you only did it because we organized such a vast and diverse movement that shined a spotlight on what decision you were going to make. The DEC was going to shoo it through until Sane Energy threw a wrench in the machine with a pro bono lawsuit. And now National Grid has an opportunity to build a perfect pilot project at Vandalia Houses, a NYCHA complex in East New York. And here they are proposing a flubbed proposal on purpose. Have you had a look at it? Sane Energy had to retain Eg Geothermal in order to do a peer reviewed study and make recommendations because we cannot afford to screw up a renewable pilot project, and we will not allow National Grid to get away with this so they can continue their fossil fuel empire. In stories throughout human history, there is always a wealthy power that can manipulate the public and the government to ensure more power for themselves.

However, we're not in a Hollywood movie, and this is not a Marvel comic book, yet, we're dealing with some of the most evil practices on this earth today. We heard from people in the last three hearings who worked for National Grid, who contract with National Grid in their unions and who get money from National Grid for their under-resourced community groups.

We love our neighbors. We love rank and file employees, we love unions. We -- National Grid profits when we are all divided. National Grid is doing nothing but containing these groups with their vast resources that come from our wallets in a stranglehold, so we cannot grow into the 21st century and get out of the 19th century technology that is rapidly creating a planet that can no longer sustain life. The rapidity of extinction that is happening on our planet is affecting every single one of us. Fires, floods, clean water shortages like we all just experienced, and food shortages, which al -- already happened to many regions in the world. Let's not think for a second that this is not coming to the region we live in called New York, because it is a guarantee that everyday climate crisis will be our new norm, if we continue to allow a corporation like

National Grid to dupe the public and our system of governance into thinking that we need them.

As we saw during the COVID pandemic, it will always be our most vulnerable populations that will suffer first. That is because of the system that we have set up, and that is why I am asking you all to be conscientious objectors and make history. One of the early testimonies from Habitat for Humanity mentioned how National Grid works to make bills affordable, but it wasn't National Grid that did the work. It was Alliance for a Green Economy, WE ACT for environmental justice and communities for local power that intervened in the energy affordability proceeding in order to make those affordable options happen for New Yorkers. So how dare National Grid take credit for the tireless work of a few activists who happened to figure out that the Department of Public Service is where these decisions get made. Please follow our climate law and our law and moral authority and deny National Grid's proposal. Thank you.

A.L.J. LEARY: Thank you. Okay. Let's go to Erika Chamberlain. Ms. Chamberlain, you're unmuted. Please provide your statement.

MS. CHAMBERLAIN: Thank you. My name is Erika Chamberlain and I happen to live in Greenpoint, Brooklyn. I emphatically vote no on extending the life of the Greenpoint Energy Center. Spending $447 million on this decrepit facility that should be retired is stupid to say the least. That money should be used to building thermal energy networks and expanding energy efficiency. This plan that they have is counter to New York law. I would like to say that I lived through Hurricane Sandy. That right there should have been a wakeup call. I couldn't even get to work for three weeks because of the flooding on the G Line in the subway was insane. Then we had nor'easters, right? And now this summer, living through the Canadian wildfires, which are still burning. They're now sending their smoke down to the, you know, the middle of the country.

I had -- I mean, I had a hard time breathing, so all of these things are related to each other. We just cannot continue to do these things with some imp -- with -- with this idea of impunity. We live on this planet. New York City is a city that is surrounded by water. There is flooding, there is crazy thunderstorms, then there's scorching heat. We

have got to go in the right direction now. It is way past time. And I see absolutely no reason why National Grid or any of the other monikers that they go under should get a penny more. They should really step into the present now, get on the ball and invest in real green energy. There will be plenty of jobs for everyone because Lord knows we are way behind in infrastructure. So again, I -- I vote you to vote, no. Thank you very much for your time. Appreciate it.

A.L.J. LEARY: Thank you, Ms. Chamberlain. Okay, let's go to Ms. Leidecker. Jodie Leidecker. We're just going to unmute your line.

MS. LEIDECKER: Can you hear me?

A.L.J. LEARY: Yes. Go ahead and make your statement. Ms. Chamberlain's line needs to be muted.

MS. LEIDECKER: Thank you. My name is Jodie Leidecker, as you said, and I live probably about 10 to 15 steps away from a National Grid Pipeline. And I can't really explain to anyone on this call what it's like to live in fear every day. We all know that a pipeline explodes somewhere in the country every four days. Pipelines leak, and that's

one of the big problems with these methane transmission lines is that they're constantly leaking. So I don't think I can explain to anyone here what it's like to live in fear like this, to not know what the future holds. And I know we've all seen these videos of these pipelines and the risks they pose to people. I don't think anybody here would want that risk so close to their homes and their families. So it's disappointing that the Public Service Commission, and that's supposed to, you know -- it's whose mission is stated to provide just affordable and healthy climate for New Yorkers, is considering further fracked gas infrastructure.

I doubt anyone who's going to be living next to this extended infrastructure would welcome it. So I want to just say, reject the proposal to spend nearly $4 billion on this frack -- fracked gas infrastructure, and I vote no to spending any -- another of my -- a penny of my money or my neighbor's money, to connect more fracked gas infrastructure up. We need to reject a new pipeline and any meter or regulating station that goes with it. I don't want to extend the life of the fracked gas infrastructure reinforcements throughout Queens,

Corona, Jamaica and Long Island. It's counter to New York law. And I vote no to spending 2 billion to extend the life of the fracked gas pipelines throughout the National Grid's Lead prone pipe program that's also countered in New York law. And I vote no on extending the life of the Greenpoint Energy Center. I vote yes on investing in clean, green, safer energy, thermal energy networks, and energy efficiency, so we can meet our state's climate goals and actually be a leader in climate action. Thank you.

A.L.J. LEARY: Thank you, Ms. Leidecker. Okay, that is bringing us close to the end of our hearing. I want to open up again and ask the participants if there's anyone else who would like to provide a public statement. Okay. Ms. Hollow, Tamsin Hollo.

MS. HOLLO: Hi, that was quick. Did you want me to speak straight away?

A.L.J. LEARY: You -- if you're ready, feel free.

MS. HOLLO: I'm ready. Thank you. My name's Tamsin Hollo. I'm calling from Newburgh Clean Water Project, representing about 900 members in the

Hudson Valley. First of all, thanks so much for holding these hearings at such short notice. I'm sure that there will be many more people writing in in the future. I'm attending from Newburgh in the Hudson Valley, so my rates won't be affected by this proposed rate rise, but I'm attending tonight because I'm -- I'm really alarmed by this proposal to spend nearly $4 billion shoring up a -- a dying and dangerous industry in a time of climate crisis. Here in the Hudson Valley, we've been hit with monsoon style rains throughout July. Our commuter roots throughout the region have been washed out.

My 90-year-old mother, who lives for her daily walk, you know, I've had to tell her throughout the last month that we simply can't leave the house because of smoke pollution sparked by the climate crisis. So it's clear that the effects of -- of climate change don't respect city and county boundaries. So I'm asking you to please deny this -- this massive gas infrastructure build up. It's not necessary, it's dangerous, and it prolongs our reliance on polluting greenhouse gases, affecting not only those in New York City and Long Island, but all of us in New York State and obviously far beyond. So

please vote no and -- and let's meet our -- our climate goals together. Thank you.

A.L.J. LEARY: Thank you. Okay, anyone else, please press star 3 if you're a call-in user or you may raise your hand on your computer. On that lower toolbar, you'll see a hand icon. Not seeing anyone. Thank you so much everyone for attending, and many thanks to Chair Christian and Commissioner Maggiori. I want to remind all the members of the public that you may submit public comments throughout the proceeding by the means I previously described. And I want to also indicate that we will be holding in-person public statement hearings probably this fall.

MR. WHITE: Your Honor, we -- we have a raised hand. I don't know if you wanted to continue with --.

A.L.J. LEARY: Oh, sure. Absolutely. Mr. Alexander, we are going to unmute your line. Okay, go ahead. You can provide your statement. Mr. Alexander, I am not hearing you. I -- I think that was a mistake. Mr. Alexander, see if you have muted yourself and then -- because you are unmuted on our end. Okay. I -- I don't hear him, Mr. White, so I

think we're just going to move on. Try again. You want to try to unmute him again?

MR. WHITE: I unlowered the -- I unlowered his hand -- his hand. If he raises his hand again, I -- I will unmute.

A.L.J. LEARY: Okay, great. So in -- in closing we are going to have additional in-person public statement hearings this Fall. We don't have dates yet, but generally we have them one in the afternoon and one in the evening at different locations, so you will receive notification of those hearings and we will make every effort, Judge Costello and I, with the support of the Commission, to provide adequate notice.

There's some dispute about the notice in -- in this case for these public statement hearings and what occurred, but we -- we are hearing you. We will pay some attention to that of course. And rest assured that you'll have adequate notice. Judge Costello, and I want to thank all of the commenters for their participation. And I know we speak on behalf of the Commissioners and the Chair to acknowledge you for being present. And many thanks to our Consumer Services Office, Mr. White, Ms.

Kailas, for assisting us this evening, and Mr. McClain, our Court Reporter, many thanks. Unless there is anything further, feel free Mr. White, if you have anything further for me -- excellent, okay.

MR. WHITE: We can close here. We can close down, Your Honor. We'll stop sharing on YouTube now.

A.L.J. LEARY: Excellent. And thank you everyone and have a wonderful night. We are off the record, thank you.

MR. WHITE: We are off the record, your Honor.

(The hearing concluded at 6:51 p.m.)

8/2/23 - National Grid, NY - 23-G-0225/23-G-0226

STATE OF NEW YORK

I, ANTHONY MCCLAIN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 37, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 8th day of August, 2023.

ANTHONY MCCLAIN, Reporter